

(b) as if references in subsection (4) of the said section twenty-five to a local authority or statutory undertakers included references to any person (other than a Minister or the Central Land Board) who is entitled to possession as aforesaid;

and sections twenty-six and twenty-seven of the said Act of 1944 shall have effect accordingly.

4. The Sixth Schedule to the said Act of 1947 shall have effect as if any reference therein to an order made under section forty-nine of that Act or under subsection (1) thereof included a reference to an order made under subsection (5) of section five of this Act.

5. Any other provisions of the said Act of 1947 shall, so far as they are applicable in relation to an order made under section forty-nine of that Act, apply in like manner to an order made under subsection (5) of section five of this Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Acquisition of Land (Assessment of Compensation) Act, 1919... ..	9 & 10 Geo. 5. c. 57.
Land Charges Act, 1925	15 & 16 Geo. 5. c. 22.
Land Drainage Act, 1930	20 & 21 Geo. 5. c. 44.
Town and Country Planning Act, 1944	7 & 8 Geo. 6. c. 47.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
River Boards Act, 1948	11 & 12 Geo. 6. c. 32.
Coast Protection Act, 1949	12, 13 & 14 Geo. 6. c. 74.
Public Utilities Street Works Act, 1950	14 Geo. 6. c. 39.

CHAPTER 19

Pharmacy Act, 1953

ARRANGEMENT OF SECTIONS

Section

1. Abolition of register of chemists and druggists.
2. Examinations for registration of pharmaceutical chemists.
3. Register of pharmaceutical chemists.
4. Byelaws as to examinations, etc
5. Registration of persons holding University degrees in pharmacy.
6. Extension of objects of benevolent fund.

Section

7. Miscellaneous enactments ceasing to have effect.
8. Confirmation of Charter.
9. Consequential amendments and repeals.
10. Interpretation.
11. Short title, commencement and extent.

SCHEDULES:

First Schedule—Transfer to register of pharmaceutical chemists of persons registered as chemists and druggists, etc.

Second Schedule—Consequential amendments and repeals.

Part I—Amendments.

Part II—Repeals.

An Act to amend the law relating to pharmacy and for purposes consequential on such amendment.

[20th May 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Abolition of register of chemists and druggists.

1.—(1) The register of chemists and druggists directed to be kept by section ten of the Pharmacy Act, 1868, shall cease to be kept, and (subject to the following provisions of this Act) so much of the Pharmacy and Poisons Acts, 1852 to 1941, as relates to the registration of persons as chemists and druggists, or to persons so registered, shall cease to have effect.

(2) The provisions of the First Schedule to this Act shall have effect for securing the registration as pharmaceutical chemists of persons who immediately before the coming into operation of this section were registered or entitled to be registered as chemists and druggists, and for other purposes consequential on the provisions of this section.

Examinations for registration of pharmaceutical chemists.

2.—(1) Subject to the provisions of this section, the persons who are to be examiners for the purposes of section eight of the Pharmacy Act, 1852, shall be appointed by the Council, and so much of that section as regulates the appointment of such examiners shall cease to have effect.

(2) The following provisions of the Pharmacy Act, 1868, that is to say:—

- (a) so much of section six as relates to the powers of the Privy Council in respect of the appointment of examiners and the conduct of examinations; and

(b) section seven so far as it relates to fees payable on examinations,

shall apply to examinations held for the purposes of the Pharmacy Act, 1852, as they applied, before the coming into operation of section one of this Act, to examinations held under the said Act of 1868.

3.—(1) The register of pharmaceutical chemists kept under section ten of the Pharmacy Act, 1852, shall be kept in such form and manner, and the annual registers of pharmaceutical chemists published under section thirteen of the Pharmacy Act, 1868, shall be prepared in such form, as may be prescribed by byelaws; and so much of the said section thirteen as requires the said annual registers to be printed, published and sold in the month of January shall cease to have effect. Register of pharmaceutical chemists.

(2) Sections ten and twelve of the Pharmacy Act, 1868 (which relate to the keeping of the register of chemists and druggists under that Act) shall apply (subject to the foregoing provisions of this section) to the register of pharmaceutical chemists and to persons entitled to be registered therein as they applied, before the coming into operation of section one of this Act, to the register of chemists and druggists and to persons entitled or authorised to be registered under that Act.

4.—(1) The following paragraph shall be substituted for paragraph (a) of section four of the Poisons and Pharmacy Act, 1908 (which extends the powers of the Council to make byelaws with respect to examinations and registration):— Byelaws as to examinations, etc.

“(a) Providing that no certificate referred to in section eight or nine of the Pharmacy Act, 1852, shall be granted to any person unless such person produces evidence satisfactory to the Council of the Society that he has received a sufficient practical training in the subjects of the examination;”.

(2) The following paragraphs shall be substituted for paragraph (c) of the said section four:—

“(c) Requiring persons desirous of presenting themselves for examination under the Pharmacy Act, 1852, to produce evidence satisfactory to the Council of the Society that they have received a sufficient general education;

(d) Providing for periods of time and courses of study in connection with the examination for the purposes of the Pharmacy Act, 1852, and dividing such examination into two or more parts.”.

Registration
of persons
holding
University
degrees in
pharmacy.

5.—(1) The power of the Council to make byelaws under section two of the Pharmacy Act, 1852, shall include power to make byelaws as to the registration as pharmaceutical chemists of persons holding or having held a degree granted in respect of pharmacy by any University in the United Kingdom, providing for their registration (subject to such conditions as to character and otherwise as may be prescribed by the byelaws) either—

- (a) without examination, and without satisfying any requirements to which they would be subject apart from this section under byelaws made by virtue of section four of the Poisons and Pharmacy Act, 1908; or
- (b) subject to requirements as to examination, or to any such requirements as aforesaid, relaxed as compared with those to which they would be subject apart from this section.

(2) Any byelaws made by virtue of this section may include provision requiring the payment, as a condition of registration, of such fee as may be prescribed by the said byelaws.

Extension of
objects of
benevolent
fund.

6.—(1) The Council may, out of the property of the Society and out of any property for the time being comprised in the benevolent fund established in pursuance of the Charter of the Society, as amended by section twenty-two of the Pharmacy Act, 1868, make provision for such purposes relating to the relief of distressed persons, being—

- (a) members of the Society;
- (b) persons who at any time have been such members or have been registered as pharmaceutical chemists or as chemists and druggists;
- (c) widows, orphans or other dependants of deceased persons who were at any time members of the Society or registered as aforesaid; or
- (d) students of the Society,

as the Council may, subject to byelaws, determine.

(2) Section twenty-two of the Pharmacy Act, 1868, shall cease to have effect.

Miscellaneous
enactments
ceasing to
have effect.

7. The following provisions of the Pharmacy and Poisons Acts, 1852 to 1941, shall cease to have effect, that is to say:—

- (a) sections five and seven of the Pharmacy Act, 1852 (which provide for the maintenance of a register of members of the Society and the issue of certificates of inclusion in that register);

- (b) so much of that Act as relates to the examination and certification of students, apprentices or assistants;
- (c) section eleven of that Act (which prohibits the registration in the register of pharmaceutical chemists of members of the medical profession);
- (d) the whole of the Pharmacy Acts Amendment Act, 1898 (which relates to the registration and election of persons as student-associates of the Society, the retirement of the members of the Council and the election of officers of the Society); and
- (e) so much of subsection (2) of section one of the Pharmacy and Poisons Act, 1933, as provides that the retention fee therein referred to shall not exceed two pounds.

8. The Charter of the Society, except so far as amended or Confirmation repealed by this Act or any previous enactment, is hereby con- of Charter.
firmed; but nothing in this section affects any power exercisable by Her Majesty by virtue of Her Royal Prerogative in relation to that Charter.

9.—(1) Subject to the provisions of this section, the enactments specified in Part I of the Second Schedule to this Act shall be amended to the extent therein specified, and the enactments specified in Part II of the said Schedule are hereby repealed to the extent specified in the third column of that Part. Consequential amendments and repeals.

(2) In relation to anything done before the coming into operation of section one of this Act, any reference in the enactments referred to in the foregoing subsection to the register of chemists and druggists shall, notwithstanding anything in that subsection, continue to have effect as a reference to that register.

10.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:— Interpretation.

“byelaws”, “certificate of registration”, “the Council”, “registrar”, “the Society”, and “the Statutory Committee” have the same meanings as in the Pharmacy and Poisons Act, 1933;

“the Charter of the Society” means the Charter of Incorporation granted to the Society on the eighteenth day of February, eighteen hundred and forty-three, as amended by supplemental Charters granted in the years nineteen hundred and one and nineteen hundred and forty-eight.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by any subsequent enactment, including (except where the context otherwise requires) this Act.

Short title,
commence-
ment and
extent.

11.—(1) This Act may be cited as the Pharmacy Act, 1953.

(2) This Act shall come into operation on such day as Her Majesty may by Order in Council appoint, and different days may be so appointed for different provisions of this Act.

(3) This Act shall not extend to Northern Ireland.

Section 1.

SCHEDULES

FIRST SCHEDULE

TRANSFER TO REGISTER OF PHARMACEUTICAL CHEMISTS OF PERSONS REGISTERED AS CHEMISTS AND DRUGGISTS, ETC.

1. Every person who was registered as a chemist and druggist immediately before the coming into operation of section one of this Act (in this Schedule referred to as the relevant date) shall be registered as a pharmaceutical chemist.

2. Every person who immediately before the relevant date was entitled to be registered as a chemist and druggist by virtue of the provisions of section six of the Pharmacy Act, 1868, but was not so registered, shall (subject to the provisions of paragraph 4 of this Schedule and to any direction which may be given on or after the relevant date under section four of the Pharmacy and Medicines Act, 1941) be entitled to be registered as a pharmaceutical chemist on payment of the fee payable on registration as a pharmaceutical chemist.

3. In relation to any person who was registered as a chemist and druggist at any time before the relevant date, the following enactments, that is to say—

- (a) the proviso to section ten of the Pharmacy Act, 1868 (which provides for the restoration to the register of chemists and druggists of names erased from that register under that section);
- (b) so much of subsection (4) of section one of the Pharmacy and Poisons Act, 1933, as provides for the restoration to the register of names removed therefrom under that subsection;
- (c) subsection (2) of section seven of the said Act of 1933 (which enables the Statutory Committee to direct the registrar to restore to the register any name or entry which has been removed therefrom); and

(d) section four of the Pharmacy and Medicines Act, 1941 (which enables the said Committee in certain cases to give directions relating to the restoration of names to the register),

1ST SCH.
—cont.

shall have effect as if for any reference to restoration to the register of chemists and druggists there were substituted a reference to entry in the register of pharmaceutical chemists.

4. Any direction given by the Statutory Committee before the relevant date in relation to the register of chemists and druggists, being—

(a) a direction under section four of the Pharmacy and Medicines Act, 1941; or

(b) a direction under subsection (1) of section seven of the Pharmacy and Poisons Act, 1933, which, by virtue of subsection (2) of section fourteen of that Act, has not taken effect before that date,

shall continue in force and have effect as if for any reference therein to the said register or to restoration thereto there were substituted a reference to the register of pharmaceutical chemists or to entry in that register.

5. It shall be the duty of the registrar to make such alterations in the register of pharmaceutical chemists as are necessary to give effect to the provisions of this Schedule.

6. Every certificate of registration which was issued before the relevant date and which certifies that the person therein specified is registered as a chemist and druggist according to the provisions of the Pharmacy Act, 1868, shall, for such period as may be prescribed by byelaws, be deemed to be a certificate of registration certifying that the person therein specified is registered as a pharmaceutical chemist according to the provisions of the Pharmacy Act, 1852, and the said certificate shall throughout the said period have effect accordingly.

SECOND SCHEDULE

Section 9.

CONSEQUENTIAL AMENDMENTS AND REPEALS

PART I

AMENDMENTS

The Pharmacy Act, 1852

(15 & 16 Vict. c. 56)

In section eight, for the words “under or in pursuance of the said Charter of Incorporation or the byelaws thereof, or under this Act” there shall be substituted the words “for the purpose by the Council of the said Society”.

The Pharmacy Act, 1868

(31 & 32 Vict. c. 121)

In section six, for the words “this Act”, in the fifth and sixth places where those words occur, there shall be substituted the words “the Pharmacy Act”.

2ND SCH.
—cont.

In section ten, for the words from “to make and keep” to “shall have died” there shall be substituted the words “to keep in accordance with byelaws made by the Pharmaceutical Society the register of Pharmaceutical Chemists under the Pharmacy Act and to erase from that register the names of all registered persons who have died”, and for the words “registered under this Act” there shall be substituted the words “registered in that register”.

In section twelve, for the words “this Act” there shall be substituted the words “the Pharmacy Act”.

In section thirteen, for the words “‘The Registers of Pharmaceutical Chemists and Chemists and Druggists’” there shall be substituted the words “‘The Annual Register of Pharmaceutical Chemists’”, and for the word “registers”, in the second and fourth places where that word occurs, there shall be substituted the word “register”.

In section fourteen, for the words “the said registers” there shall be substituted the words “the annual register of pharmaceutical chemists”.

The Poisons and Pharmacy Act, 1908

(8 Edw. 7. c. 55)

In paragraph (b) of section four, for the words “as pharmaceutical chemists or chemists and druggists under the Pharmacy Acts, 1852 and 1868” there shall be substituted the words “as pharmaceutical chemists under the Pharmacy Act, 1852”.

The Pharmacy Act, 1929

(19 & 20 Geo. 5. c. 31)

In section one, for the words “as pharmaceutical chemists or chemists and druggists under the Pharmacy Acts, 1852 and 1868” there shall be substituted the words “as pharmaceutical chemists under the Pharmacy Act, 1852”.

The Pharmacy and Medicines Act, 1941

(4 & 5 Geo. 6. c. 42)

In subsection (1) of section seventeen, for the words “‘registered dentist’ and ‘registered pharmacist’ have the same meanings as in the principal Act” there shall be substituted the words “‘registered dentist’ has the same meaning as in the principal Act and ‘registered pharmacist’ has the same meaning as in the principal Act as amended by the Pharmacy Act, 1953”.

The Medical Practitioners and Pharmacists Act, 1947

(11 & 12 Geo. 6. c. 11)

In subsection (1) of section eleven, for the words “paragraph (a) or (c) of section four of the Poisons and Pharmacy Act, 1908 (which relate to preliminary practical training and to periods and courses of study)” there shall be substituted the words “section four of the Poisons and Pharmacy Act, 1908, as amended by the Pharmacy Act, 1953”.

PART II
REPEALS

2ND SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Vict. c. 56.	The Pharmacy Act, 1852.	Section one. Section five. Section seven. In section eight, the words from “or as the case may require”, to the end of the section. In section ten, the words from “and every such person” to the end of the section.
31 & 32 Vict. c. 121.	The Pharmacy Act, 1868.	Section eleven. Section three. In section six, the words from the beginning to “provided that”. In section seven, the words “and registration”. Section nine. In section eleven, the words “or chemist and druggist” in both places where they occur. In section thirteen, the words “in the month of January”; the words from “and a correct register” to “effect, of all persons”; the words “and on the register of chemists and druggists”; the words “or of this Act”, in both places where they occur, and the words “as the case may be”. Section twenty-two. Schedule (B). The whole Act.
61 & 62 Vict. c. 25. 23 & 24 Geo. 5. c. 25.	The Pharmacy Acts Amendment Act, 1898. The Pharmacy and Poisons Act, 1933.	In subsection (2) of section one, the words “but not exceeding two pounds”. Subsection (6) of section one. In subsection (1) of section three, the words “for any person unless he is registered as a pharmacist”. In section twenty-nine, in the definition of “pharmacist”, the words “or a chemist and druggist”; and in the defini- tion of “register”, the words “or the register of chemists and druggists”.

2ND SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 81.	The National Health Service Act, 1946.	In subsection (1) of section seventy-nine, in the definition of "registered pharmacist", the words "or the register of chemists and druggists".
10 & 11 Geo. 6. c. 27.	The National Health Service (Scotland) Act, 1947.	In subsection (1) of section eighty, in the definition of "registered pharmacist", the words "or the register of chemists and druggists".
10 & 11 Geo. 6. c. 29.	The Penicillin Act, 1947.	In section five, in the definition of "registered pharmacist", the words "or the register of chemists and druggists".
11 & 12 Geo. 6. c. 11.	The Medical Practitioners and Pharmacists Act, 1947.	In subsection (1) of section eleven, the words "or as chemists and druggists" and the words "and the Pharmacy Act, 1868".
11 & 12 Geo. 6. c. 37.	The Radioactive Substances Act, 1948.	In section twelve, in the definition of "registered pharmacist", the words "or the register of chemists and druggists".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Pharmacy Act, 1852	15 & 16 Vict. c. 56.
Pharmacy Act, 1868	31 & 32 Vict. c. 121.
Pharmacy Acts Amendment Act, 1898	61 & 62 Vict. c. 25.
Poisons and Pharmacy Act, 1908... ..	8 Edw. 7. c. 55.
Pharmacy Act, 1929	19 & 20 Geo. 5. c. 31.
Pharmacy and Poisons Act, 1933... ..	23 & 24 Geo. 5. c. 25.
Pharmacy and Medicines Act, 1941	4 & 5 Geo. 6. c. 42.
Medical Practitioners and Pharmacists Act, 1947	11 & 12 Geo. 6. c. 11.